

M/S Sartaj Rice Mill Thru' Its Partner Maqsood Ali v. Paschimanchal Vidhyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 7 October 2015 · WRIT - C No. 55505 of 2015 · **Writ petition dismissed**

HEADNOTE

Where a consumer, on being served an overload-consumption assessment notice, himself offers in writing to pay the assessed sum in instalments and the licensee accepts that offer (restoring the disconnected connection on that basis), the assessment thereby becomes final/binding on the consumer by his own acceptance, even absent a separately captioned 'final order'; he cannot years later contend the assessment was never finalised. Under Para 3.1, Chapter 7 of the Commercial and Revenue Manual read with Clause 6.8(c)(i) of the U.P. Electricity Supply Code, 2005, the consumer must be given an opportunity of hearing before assessment/recovery; where the consumer was present at the hearing (held pursuant to a court-mandated four-week deadline for deciding his long-pending objection) but failed to produce the documents he claimed to rely on, and his advocate's last-minute adjournment request could not be accommodated without breaching the court's deadline, no breach of natural justice arises.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

An assessment accepted by the consumer's own offer to pay in instalments becomes final/binding; opportunity of hearing was satisfied where the consumer was present but failed to substantiate his objection, and an adjournment could not override a court-mandated deadline

QUESTION

Can a consumer, who offered in writing to pay an overload-assessment sum in instalments (accepted by the licensee, restoring his disconnected supply), later contend years afterward that the assessment was never finalised and is time-barred/void for want of a hearing, where he was in fact present and heard pursuant to a court-directed time-bound disposal of his objection?

HOLDING

No. The consumer's own written offer (19.10.2001) to pay the assessed dues in instalments, accepted by the Executive Engineer with restoration of supply, rendered the earlier assessments final by his own conduct; a subsequent, undisputed third notice (based on actual meter inspection reports) stood in the same position. Para 3.1, Chapter 7 of the Commercial and Revenue Manual (read with Clause 6.8(c)(i) of the Code) required an opportunity of hearing before assessment/recovery, which was afforded pursuant to this Court's earlier order directing disposal of the consumer's 04.05.2005 objection within four weeks; the consumer was present at the hearing but failed to produce the documents (copy of his representation/receipt) he claimed supported his case, and his advocate's illness-based adjournment request on the last available date could not be granted without breaching the court's deadline. No ex parte order or breach of natural justice was made out. ¶ [unnumbered order](#)

LIMITING FACTS

Assessment notices (Rs. 2,98,080; Rs. 1,25,838; Rs. 1,62,044) were raised over 2000-2003 based on a series of meter inspection reports showing overload consumption above the sanctioned load; the consumer's objection dated 4.5.2005 remained undecided for a decade until a 2015 writ directed its disposal within four weeks, upon which the assessing authority heard the consumer and directed deposit of the outstanding dues.

PRINCIPLE TAGS

assessment-final-by-consumer-acceptance An assessment finalised by the consumer's own written offer to pay in instalments (accepted by the licensee) cannot later be disputed as never having been finalised; his conduct amounts to acceptance/waiver of a formal final-order requirement. ¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — APPLICABILITY OF THE SECTION 56(2) TWO-YEAR LIMITATION BAR TO THE PRE-2003 OVERLOAD ASSESSMENTS

Raised by the petitioner but not squarely addressed by the Court, which decided the matter on the ground that the assessments had become final by the consumer's own acceptance/conduct. ¶ [unnumbered order](#)

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